



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White, Planner II
Subject: PUDC-23-100 / R and R at Sweetgrass / Final Plat
Date: September 11, 2023

Background:

The item for consideration is a *Final Plat*. This is approved by Resolution.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 9/11/2023
- Public Services Committee 9/19/2023
- Final consideration 9/25/2023

Planning Commission Recommendation:

The Planning Commission heard this item at their September 5, 2023 meeting and unanimously voted to recommend the Governing Body approve this application with staffs conditions.

Staffs conditions are as follow:

1. Prior to Governing Body approval:
 - a. Modify the curves on the Prairie Gold Lane right-of-way so the centerline meets AASHTO standards for a minimum 30mph design speed.
 - b. Number the blocks, and renumber or rename the lots appropriately.

The Planning Commission Staff report is attached.

Attachments:

1. Resolution
2. Final Map
3. Planning Commission Staff Report

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR R AND R AT SWEETGRASS, A REPLAT OF ALL OF LOTS 1, 2, & 3, AND TRACT T, BLOCK 8, SWEETGRASS, 2ND FILING, AND A PORTION OF ADJACENT RIGHTS-OF-WAY, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED SOUTHEAST OF THE INTERSECTION OF SWEETGRASS DRIVE AND E COLLEGE DRIVE.)."

WHEREAS, Sweetgrass Land CO, LLC has subdivided said land in accordance with the statutes in such cases made and provided;

WHEREAS, Sweetgrass Land CO, LLC the owner of the above described land, has caused a subdivision plat of said land to be made, acknowledged, and certified, particularly describing the lots, blocks, easements, and rights-of-way; and,

WHEREAS, the above described subdivision plat was presented to the City of Cheyenne Planning Commission for consideration on September 5, 2023; the Planning Commission recommended that said plat be approved by the Governing Body; and, the plat has been duly executed by the Development Office.

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the subdivision described as R and R at Sweetgrass, Cheyenne, Wyoming, be and the same hereby is approved and confirmed as presented, and that the Mayor and the City Clerk be and are hereby authorized, empowered, and directed to execute said plat, when Community Facility Fees have been paid in full.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2023.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk

BOUNDARY CURVE TABLE					
CURVE #	DELTA	RADIUS	CHORD BEARING	CHORD LENGTH	ARC LENGTH
C1	57° 21' 08"	32.00'	N28° 23' 39"W	30.71'	32.03'
C2	27° 56' 38"	120.00'	N43° 05' 54"W	57.95'	58.53'
C3	49° 17' 15"	24.00'	N53° 46' 13"W	20.01'	20.65'
C4	46° 51' 24"	24.00'	N53° 07' 07"E	19.08'	19.63'
C5	27° 56' 38"	120.00'	N43° 36' 44"E	57.95'	58.53'
C6	57° 21' 08"	32.00'	N28° 57' 28"E	30.71'	32.03'
C7	21° 47' 14"	1247.45'	N79° 05' 16"W	471.50'	474.35'
C8	9° 51' 53"	1250.00'	S17° 33' 25"W	214.95'	215.21'
C9	43° 41' 17"	700.00'	S9° 13' 11"E	520.91'	533.75'

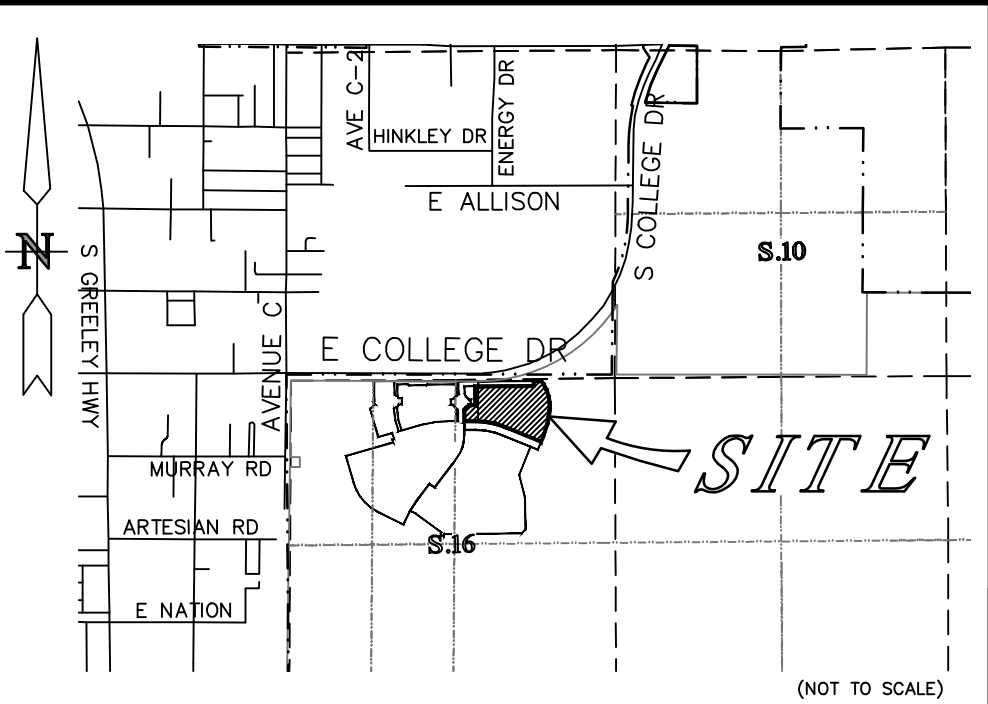
INTERNAL CURVE TABLE					
CURVE #	DELTA	RADIUS	CHORD BEARING	CHORD LENGTH	ARC LENGTH
C11	0° 23' 54"	1247.45'	N89° 46' 56"W	8.67'	8.67'
C11	23° 33' 46"	309.49'	N70° 18' 17"W	126.38'	127.27'
C12	13° 42' 15"	1247.45'	N82° 43' 52"W	6022.36'	298.37'
C13	7° 43' 46"	309.49'	N85° 57' 03"W	41.72'	41.75'
C14	13° 08' 06"	350.00'	S2° 25' 32"E	80.06'	80.24'
C15	47° 36' 22"	265.00'	S65° 53' 40"E	213.90'	220.18'
C16	20° 18' 38"	450.00'	S32° 38' 40"W	158.68'	159.52'
C17	7° 41' 05"	1247.45'	N72° 02' 12"W	6017.32'	167.32'
C18	19° 10' 56"	309.49'	N48° 55' 56"W	103.13'	103.61'
C19	3° 54' 18"	350.00'	S50° 32' 12"W	23.85'	23.85'
C20	44° 26' 33"	350.00'	N26° 21' 47"E	264.73'	271.48'
C21	48° 20' 07"	450.00'	S17° 08' 43"W	368.47'	379.62'
C22	11° 10' 35"	450.00'	N46° 54' 04"E	87.64'	87.78'
C23	30° 00' 00"	350.00'	N37° 29' 21"E	181.17'	183.26'

ROAD CENTERLINE CURVE TABLE					
CURVE #	DELTA	RADIUS	CHORD BEARING	CHORD LENGTH	ARC LENGTH
C24	47° 32' 21"	305.49'	S65° 54' 04"E	246.26'	253.47'
C25	30° 00' 00"	400.00'	S37° 29' 21"W	207.06'	209.44'
C26	72° 21' 10"	400.00'	S16° 18' 46"W	472.22'	505.12'

GENERAL NOTES

- BASIS OF BEARINGS - WYOMING STATE PLANE COORDINATES, EAST ZONE NAD83-2011. SITE COMBINATION FACTOR = 0.999665203. GRID DISTANCES.
NOTE: "SWEETGRASS" ANNEXATION (UDC-17-00543) INCLUDING THE SE $\frac{1}{4}$ OF SECTION 10 AND THE S $\frac{1}{4}$ OF SECTION 11, T.14N, R.66W, 6TH P.M. (ORD #4159 REC.BK.2523, Pg.1334) BASIS OF BEARINGS: CITY OF CHEYENNE CONTROL NETWORK REFERENCED FROM CITY CONTROL MONUMENTS "A.P.R." & "LUMMIS".
- ALL UNMONUMENTED LOT CORNERS, ANGLE POINTS, AND POINTS OF CURVATURE TO BE MONUMENTED WITH 1 $\frac{1}{2}$ " ALUMINUM CAP STAMPED "SSS P.L.S. 5910" ON $\frac{5}{8}$ "x24" REBAR.
- A PORTION OF THE LANDS CONTAINED WITHIN THE PLAT BOUNDARY AS SHOWN FALL WITHIN F.E.M.A. 100-YEAR SPECIAL FLOOD HAZARD AREA PER F.I.R.M. PANEL No.56021C13577, DATED JANUARY 17, 2007.
- DOMESTIC WATER AND SANITARY SEWER SERVICES TO BE PROVIDED BY CITY OF CHEYENNE BOARD OF PUBLIC UTILITIES (BOPU).
- OPEN SPACE
 - PRIVATE OPEN SPACE TRACT (TRACT T) IS, RESERVED FOR SWEETGRASS PUD PRIVATE OPEN SPACE AND/OR NON-MOTORIZED TRAILS, SAID TRACTS MAY BE ENCUMBERED BY UTILITY AND/OR DRAINAGE EASEMENTS CREATED BY SEPARATE INSTRUMENT AND/OR AS SHOWN HEREON. OWNERSHIP OF SAID TRACT T SHALL BE MAINTAINED BY CURRENT LANDOWNER: SWEETGRASS LAND CO., LLC, THEIR LEGAL SUCCESSORS AND/OR ASSIGNS (SEE NOTE TO ASSESSOR).
 - PRIVATE OPEN SPACE EASEMENT ACROSS LOT 8 HEREON IS RESERVED FOR RECREATION AND NON-MOTORIZED TRAILS, SAID EASEMENT MAY BE ENCUMBERED BY UTILITY AND/OR DRAINAGE EASEMENTS CREATED BY SEPARATE INSTRUMENT AND/OR AS SHOWN HEREON. THE OWNER OF SAID LOT 8, THEIR LEGAL SUCCESSORS AND/OR ASSIGNS SHALL MAINTAIN AND MAINTAIN SAID EASEMENT EXCEPT AS OTHERWISE IDENTIFIED BY APPROPRIATE INSTRUMENT, PROPERLY EXECUTED AND RECORDED IN THE REAL ESTATE OFFICE OF THE LARAMIE COUNTY CLERK. (THIS MAY INCLUDE, BUT IS NOT LIMITED TO, COVENANTS, DEEDS, OR OTHER AGREEMENTS).
- ZONE DISTRICT: SWEETGRASS PLANNED UNIT DEVELOPMENT (PUD) [4th Amendment] AS APPROVED BY THE CITY COUNCIL OF CHEYENNE, WYOMING ON THE ____ DAY OF ____, 20__, (ORDINANCE #____).
LANDS CONTAINED WITHIN THE PLAT BOUNDARY ARE SUBJECT TO THE PROVISIONS OF THE "SWEETGRASS" PUD ANNEXATION MASTER ANNEXATION AGREEMENT (CITY CONTRACT #6784) RECORDED 4/23/2018 IN BOOK 2583, PAGE 1914 IN THE REAL ESTATE OFFICE OF THE CLERK OF LARAMIE COUNTY, WYOMING.
- "100' PUBLIC INGRESS/EGRESS & DRAINAGE EASEMENT" TO BE CONSIDERED AND REGARDED AS PUBLIC RIGHT-OF-WAY (R/W) UNDER AUTHORITY OF THE CITY OF CHEYENNE, GRANTED BY SEPARATE INSTRUMENT FOR DRAINAGE AND FOR PUBLIC ACCESS TO THE LANDS CONTAINED WITHIN THIS REPLAT. SAID EASEMENT ESTABLISHED FOR SAID PURPOSES UNTIL SUCH TIME THAT COLLEGE DRIVE IS RE-ALIGNED (ANTICIPATED TO COMMENCE IN 2025) AT WHICH TIME A SUITABLE ALTERNATIVE DEDICATED R/W CONNECTION TO COLLEGE DRIVE CAN BE ESTABLISHED.
- "40'x60' INGRESS/EGRESS, UTILITY, DRAINAGE, & ACCESS EASEMENT" GRANTED MUTUALLY BY AND BETWEEN THE OWNERS OF LOTS 2 AND 4, BLOCK 8, CREATED HEREBY, THEIR LEGAL SUCCESSORS AND/OR ASSIGNS FOR THE PURPOSES INDICATED. MAINTENANCE OF THE EASEMENT AREA SHALL BE EQUALLY BORNE BY SAID OWNERS.
- ALL UTILITIES TO BE PROVIDED IN PUBLIC RIGHT(S)-OF-WAY OR EASEMENTS AS SHOWN AND DESCRIBED HEREON.
- "BHE EASEMENTS" SHOWN HEREON GRANTED TO CHEYENNE LIGHT, FUEL & POWER, THEIR LEGAL SUCCESSORS AND/OR ASSIGNS FOR THE PROVISION OF LOCAL SERVICE UTILITIES LINES ONLY. TYPICAL "B" AT COMMERCIAL STREET FRONTS AND "C" AT RESIDENTIAL FRONTS.

VICINITY MAP



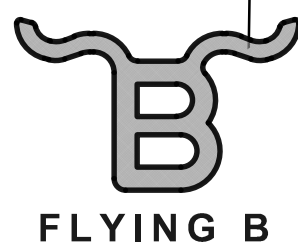
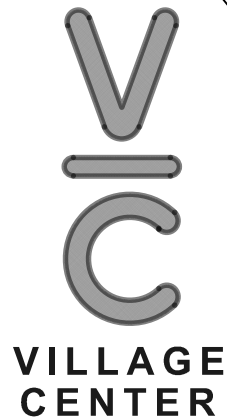
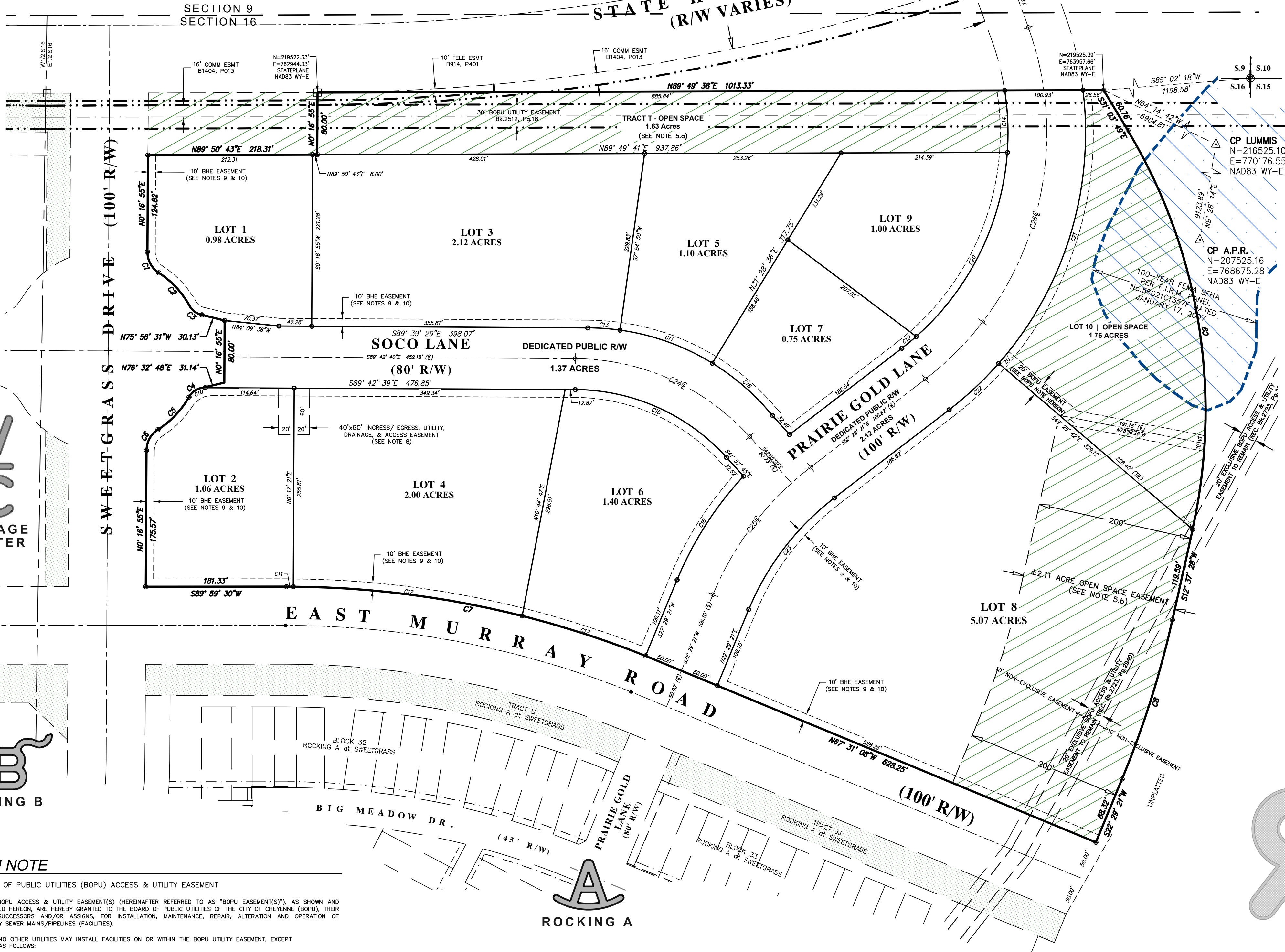
NOTE TO ASSESSOR

BY THEIR SIGNATURES AFFIXED HEREON, ALL STAKEHOLDERS OF THIS SUBDIVISION PLAT AS SHOWN HEREON CONSENT TO THE FOLLOWING BY THEIR FREE ACT AND DEED AND IN ACCORDANCE WITH THEIR DESIRES:

OPEN SPACE TRACT T IS RESERVED FOR SWEETGRASS PUD PRIVATE OPEN SPACE AND/OR NON-MOTORIZED TRAILS, SAID TRACT MAY BE ENCUMBERED BY UTILITY AND/OR DRAINAGE EASEMENTS CREATED BY SEPARATE INSTRUMENT AND/OR AS SHOWN HEREON. SAID TRACT T SHALL BE MAINTAINED BY THE SWEETGRASS MASTER HOA, THEIR LEGAL SUCCESSORS AND/OR ASSIGNS (WHICH MAY INCLUDE, BUT IS NOT LIMITED TO, OTHER ESTABLISHED OWNERS ASSOCIATION(S), AS IDENTIFIED BY APPROPRIATE INSTRUMENT, PROPERLY EXECUTED AND RECORDED IN THE REAL ESTATE OFFICE OF THE LARAMIE COUNTY CLERK.

OWNERSHIP SHALL BE ESTABLISHED AS UNDIVIDED PROPORTIONAL INTEREST (BY RATIO OF OWNERSHIP AREA/TOTAL COMMERCIAL AREA) OF ALL OWNER(S) OF LOTS 2, 3, 4, 5, 6, 7, & 9, BLOCK 8, R+R AT SWEETGRASS (THIS PLAT). ANY CONVEYANCE OF ANY OF SAID LOTS SHALL INCLUDE "AN UNDIVIDED PROPORTIONAL INTEREST IN OPEN SPACE TRACT T, R+R AT SWEETGRASS"

AUTHORITY OF PRIVATE OPEN SPACE: OPEN SPACE TRACT T IS OWNED AS DESCRIBED ABOVE, HOWEVER: AUTHORITY OF SAID LANDS AND PLATTED BOUNDARIES (OR ADJUSTMENTS THERE TO) MAY BE ASSIGNED, IN WHOLE OR IN PART, TO A MANAGING ENTITY OR OTHER ESTABLISHED OWNERS ASSOCIATION, AS IDENTIFIED BY APPROPRIATE INSTRUMENT, PROPERLY EXECUTED AND RECORDED IN THE REAL ESTATE OFFICE OF THE LARAMIE COUNTY CLERK. (THIS MAY INCLUDE, BUT IS NOT LIMITED TO, COVENANTS, DEEDS, OR OTHER AGREEMENTS).



BOPU NOTE

A. BOARD OF PUBLIC UTILITIES (BOPU) ACCESS & UTILITY EASEMENT

THOSE BOPU ACCESS & UTILITY EASEMENT(S) (HEREINAFTER REFERRED TO AS "BOPU EASEMENT(S)"), AS SHOWN AND DESCRIBED HEREON, ARE HEREBY GRANTED TO THE BOARD OF PUBLIC UTILITIES OF THE CITY OF CHEYENNE (BOPU), THEIR LEGAL SUCCESSORS AND/OR ASSIGNS, FOR INSTALLATION, MAINTENANCE, REPAIR, ALTERATION AND OPERATION OF SANITARY SEWER MAINS/PIPELINES (FACILITIES).

a. NO OTHER UTILITIES MAY INSTALL FACILITIES ON OR WITHIN THE BOPU UTILITY EASEMENT, EXCEPT AS FOLLOWS:

OTHER UTILITIES MAY CROSS THE BOPU UTILITY EASEMENT, IF AND ONLY IF:

- A UTILITY'S FACILITIES CROSS THE BOPU FACILITIES AT NO LESS THAN A 60 DEGREE ANGLE;
 - A MINIMUM OF 24 INCHES OF VERTICAL CLEARANCE IS PROVIDED BETWEEN THE BOPU FACILITIES AND THE CROSSING FACILITIES, UNLESS OTHERWISE APPROVED BY THE BOPU; AND
 - COPY OF ANY UTILITY EASEMENT AUTHORIZING THE CROSSING OF THE BOPU UTILITY EASEMENT IS PROVIDED TO THE BOPU PRIOR TO ANY CONSTRUCTION WITHIN THE BOPU UTILITY EASEMENT.
- b. IF GRANTOR REQUIRES RELOCATION OF THE FACILITIES, GRANTOR AGREES TO RELOCATE THE FACILITIES PROVIDED THAT GRANTOR PAYS FOR THE RELOCATION OF THE FACILITIES, PROVIDES A SUITABLE ALTERNATE LOCATION FOR SUCH FACILITIES AND GRANTS THE NECESSARY EASEMENT RIGHTS AT THE NEW LOCATION UPON THE SAME TERMS AND CONDITIONS PROVIDED WITH THE ORIGINAL EASEMENT.
- c. IF GRANTEE (BOPU/CITY OF CHEYENNE) REQUIRES RELOCATION OF THE FACILITIES, GRANTEE SHALL PAY FOR REMOVAL AND RELOCATION OF THE FACILITIES.
- d. IF GRANTEE ACCESSES THE FACILITIES OR UNDERTAKES WORK OR MAINTENANCE ON THE FACILITIES, GRANTEE SHALL REPAIR ANY DAMAGE TO GRANTOR'S PROPERTY RESULTING THEREFROM, INCLUDING RESTORATION OF ANY AREAS DISTURBED AS A RESULT OF SUCH ACCESS AND/OR WORK.

FILING RECORD

APPROVALS

Approved by the City of Cheyenne Planning Commission this ____ day of _____, 2023.

Planning & Development Director, City of Cheyenne, Wyoming

Approved by the Council of the City of Cheyenne, Wyoming this ____ day of _____, 2023.

Mayor

ATTEST: _____
City Clerk

CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Steil Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

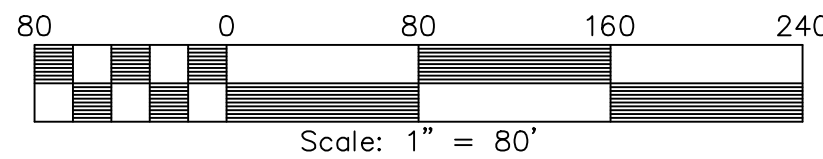
REVISED: 12/20/2021

\\20001 SWEETGRASS\004 R+R CommRetail (SG2)\CAD\SG-R+R-2022_SG2-REPLAT(1).dwg

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LEGEND

- SET 1 $\frac{1}{2}$ " ALUMINUM CAP STAMPED "SSS P.L.S. 5910" ON $\frac{5}{8}$ "x24" REBAR
- FOUND 1 $\frac{1}{2}$ " ALUMINUM CAP STAMPED "SSS P.L.S. 2500"
- ▲ FOUND PLASTIC CAP STAMPED "SSS P.L.S. 5910"
- FOUND W.D.O.T. R/W MONUMENT
- FOUND GLO STONE
- △ CITY OF CHEYENNE CONTROL MONUMENT
- ▨ EXISTING PUBLIC OPEN SPACE / GREENWAY
- ▤ PRIVATE TRAILS/OPEN SPACE EASEMENT(S) (SEE NOTE 5)



DEDICATION

KNOW ALL PERSONS BY THESE PRESENTS THAT: BLUE FEDERAL CREDIT UNION, owner in fee simple of Lot 1, Block 8, Sweetgrass, 2nd Filing, AND SWEETGRASS LAND CO., LLC, owner in fee simple of Lots 2 & 3, Block 8, Sweetgrass, 2nd Filing; situated in the NE $\frac{1}{4}$ of Section 16, Township 14 North, Range 66 West of the 6th P.M., City of Cheyenne, Laramie County, Wyoming.

Have caused said lands, along with that portion of adjacent Sweetgrass Drive and Loving Trail Public Rights-of-Way, as shown and described hereon, to be surveyed, vacated and re-platted to be known as R+R AT SWEETGRASS, and do hereby declare the subdivision of said land as it appears on this plat, to be their free act and deed and in accordance with their desires and dedicate to the public the rights-of-way as shown hereon; and do furthermore grant the easements as shown and described for the purposes indicated.

as _____
PRINT NAME PRINT TITLE for Blue Federal Credit Union

Annaliese Weiderspahn as Member for Sweetgrass Land Co., LLC

ACKNOWLEDGEMENT

STATE OF WYOMING)
COUNTY OF LARAMIE) SS

The foregoing instrument was acknowledged before me this ____ day of _____, 2023, by Annaliese Weiderspahn as Member for Sweetgrass Land Co., LLC, a Wyoming Corporation.

Notary Public, Laramie County, Wyoming

My Commission Expires: _____

STATE OF WYOMING)
COUNTY OF LARAMIE) SS

The foregoing instrument was acknowledged before me this ____ day of _____, 2023, by _____

as _____
PRINT NAME PRINT TITLE for Blue Federal Credit Union

Notary Public, Laramie County, Wyoming

My Commission Expires: _____

R and R

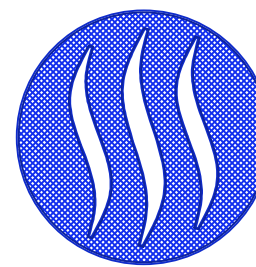
Sweetgrass

CHEYENNE WYOMING

A REPLAT OF
ALL OF LOTS 1, 2, & 3, and "TRACT T",
BLOCK 8, SWEETGRASS, 2nd FILING
AND
A PORTION OF ADJACENT RIGHTS-OF-WAY

SITUATED IN THE NE $\frac{1}{4}$ OF SECTION 16
TOWNSHIP 13 NORTH, RANGE 66 WEST, 6TH P.M.
CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

PREPARED May 2023



STEIL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
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A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE PLANNING COMMISSION SEPTEMBER 5, 2023 STAFF REPORT

FILE: PUDC-23-100: R+R at Sweetgrass (Expedited Review)

REQUEST: A replat of all of Block 1, Sweetgrass, 2nd Filing.

LOCATION: East of Sweetgrass Drive, south of College Drive

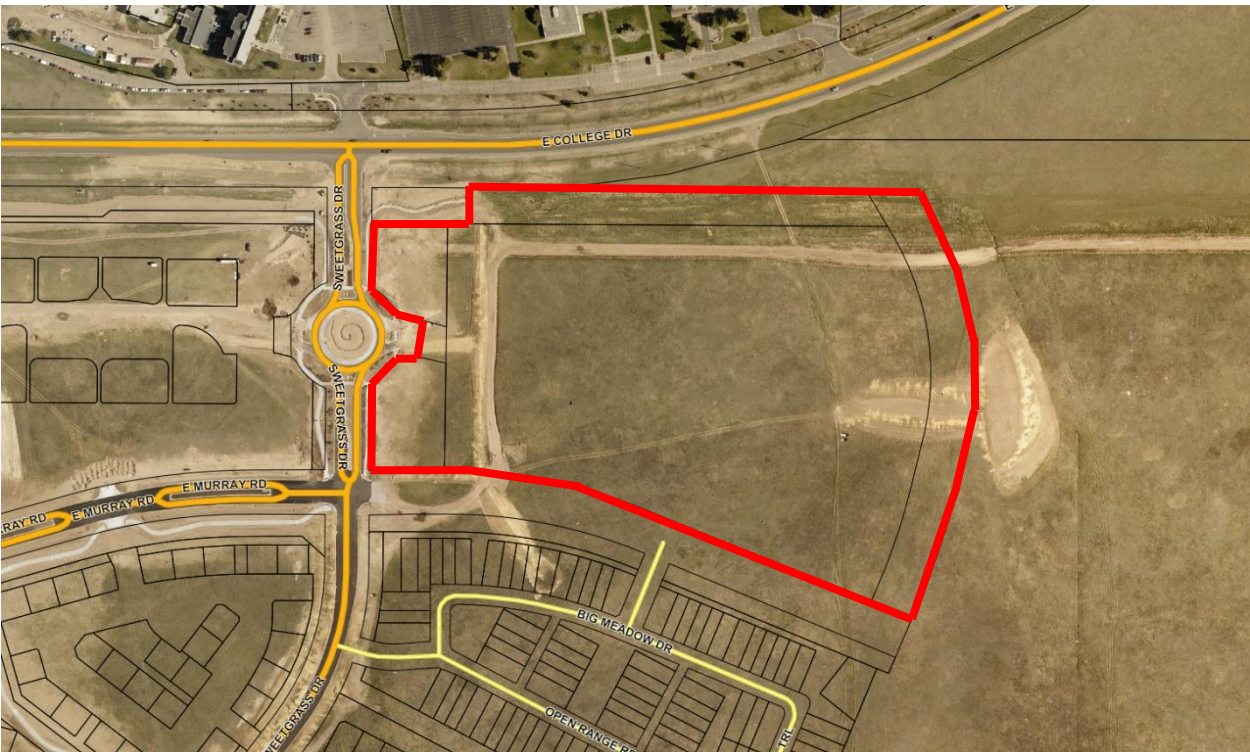
APPLICANT: Casey Palma, Palma Land Planning

OWNER: Sweetgrass Land CO, LLC

ZONING: Sweetgrass Planned Unit Development (PUD)

PURPOSE: A replat to create 10 commercial lots with open space and streets

PREPARED BY: Connor White, Planner II



RECOMMENDED MOTION:

Move to **approve** the R+R at Sweetgrass Expedited Preliminary Plat, advancing the Final Plat to the Governing Body with staff conditions.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.1.2 Preliminary Plat Approval
- UDC 2.1.3 Final Plat Approval
- UDC Article 4 Subdivisions
- UDC Article 5 Zoning Regulations
- PlanCheyenne

BACKGROUND:

The applicant is requesting approval of a replat of 22.37 acres of land. The subject area is currently vacant. The proposed development is for commercial lots in the Hospitality and Events Center (HEC) section of the Sweetgrass Planned Unit Development (PUD).

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Mixed-use Commercial	Sweetgrass PUD (HEC)	Vacant
North	Public and Quasi-Public	County LCCC PUD	Educational Facility
South	Urban Residential	Sweetgrass PUD (HDR)	Developing Residential
East	Mixed-use Commercial	Sweetgrass PUD (Open Space)	Vacant
West	Mixed-use Commercial	Sweetgrass PUD (Village Center)	Office, Vacant

The property is zoned as part of the Sweetgrass PUD. The Sweetgrass PUD is generally described as “a ±2,349.5-acre community envisioned as a distinctive mixed-use master planned village, integrating retail, entertainment, lodging, employment opportunities, and variety of intimately scaled residential neighborhoods.” The district generally allows a broad range of uses.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Preliminary Plat, the Commission must make the following findings required in UDC 2.1.2.d – a detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.1.2.d.1)

This development is in conformance with the principles and future land uses identified in PlanCheyenne. The property is within the Urban Service Boundary and has access to all utilities. The future land use map within PlanCheyenne identifies this area as developing with a mix of commercial and residential uses. The plat provides lots with typical commercial sizes.

The application **complies** with this review criterion.

2) The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities. (UDC 2.1.2.d.2)

The plat is in the Sweetgrass PUD which sets forth alternative standards for blocks and open space. The plat meshes well with the Sweetgrass development scheme. Sufficient space and corridors are provided for public access and facilities. The block network represents a sound urban design principle of interconnected, smaller blocks.

The application **complies** with this review criterion.

3) The division of land meets the purposes, intent, and all applicable standards in Article 4. (UDC 2.1.2.d.3)

Community Facility Fees (4.2):

For fees based on acreage, the area of the plat is pro-rated to the nearest tenth of an acre. Fees previously paid may be credited toward the payment currently due. This land was previously platted in 2019, and plat fees have not charged since that time.

Total Fees due at signing of the plat: \$0.00

Per UDC Section 4.2.5, Table 4-2, Enhancement Fees are payable at the issuance of a building permit for each structure.

Commercial Enhancement Fee	\$1,100 per acre
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Transportation Network (4.3):

This is a replat of an area that has previously been approved. The plat proposes re-arranging some streets, but does not substantively change the connections made. The street named 'Prairie Gold Lane' has right-of-way width to be a major street, but has curves too tight for typical major street design speeds; however, due to the short length and low levels of anticipated traffic, the City Engineer's Office is willing to consider a lower speed for road design. The right-of-way centerline is not quite aligned appropriately for this lower design speed and adjustments are required accordingly.

Open Space (4.4):

Open space parcels is provided on this plat. There are also open space easements proposed. These tracks and easements are part of Sweetgrass PUD trail system.

Required Improvements (4.5):

This plat appears to be able to provide all required utilities to the lots within this development.

Public Safety Fees (4.6):

Public Safety Fees are required at the time of construction of any commercial building on any of the proposed lots. Per UDC Section 4.6.3.b, Public Safety Fees are payable at the issuance of a building permit for each structure.

The application **complies** with this review criterion, with conditions.

- 4) **Any phasing proposed in the application is clearly indicated and demonstrates a logical and well-planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned. (UDC 2.1.2.d.4)**

No specific phasing is proposed with this project.

Review criterion **not applicable**.

- 5) **The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts. (UDC 2.1.2.d.5)**

Drainage:

A Final Stormwater Management Plan for Phase 1 of Sweetgrass was submitted and reviewed. There were no concerns with drainage at the plat level for the project as presented.

Traffic:

A Transportation Impact Study was submitted and reviewed. There were no concerns with traffic at the plat level for the project as presented.

The application **complies** with this review criterion.

- 6) **Lots proposed for development shall be buildable lots according to the existing or proposed zoning district standards, result in design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district, and not aggravate nonconforming setbacks or currently adopted building and fire code access and separation requirements. (UDC 2.1.2.d.6)**

This plat is for the Hospitality Center (HEC) section of the Sweetgrass PUD (on both the current PUD and the proposed PUD amendment). This section of the PUD is anticipated to develop with hospitality-centered businesses (such as hotels, restaurants and conference centers). The lots and blocks being provided with this plat represent a more diffuse, multiple-business model for the Hospitality Center – instead of a large, single-entity site that the previous plat anticipated.

The proposed plat changes the street layout by shifting the N-S street and adding a central E-W street. From a connectivity standpoint, this plat provides more connections and smaller blocks than the previous plat – although this does mean it would be more difficult for a large, single-entity hospitality center to develop.

All lots proposed for development are buildable lots in this zone district.

The application **complies** with this review criterion.

- 7) **All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance. (UDC 2.1.2.d.7)**

The PUD requires common lots to be owned, developed, improved, managed, and/or maintained by homeowners' associations, architectural review board(s), community development districts, and/or similar entities (PUD Section 1, Subsection G).

The application **complies** with this review criterion.

8) The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property. (UDC 2.1.2.d.8)

This plat is in conformance with the design and layout anticipated for this parcel by the Sweetgrass PUD. Adjacent Sweetgrass developments were designed and laid out with this development as an integral part of the broader development pattern.

The application **complies** with this review criterion.

9) The application is not harmful to the public health, safety, and welfare. (UDC 2.1.2.d.9)

City staff is satisfied that this proposed plat would not adversely affect the public health, safety, or general welfare.

The application **complies** with this review criterion.

10) Remainder lot(s) shall be clearly identified on the preliminary plat and shall not be developed or proposed for development for purposes. Remainder lot(s) shall be noted and described on all plats either graphically or by legal description. (UDC 2.1.2.d.10)

Remainder lots are not proposed with this plat.

Review criterion **not applicable**.

11) The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan. (UDC 2.1.3.d.1)

The Final Plat submitted with the application is substantially similar to the Preliminary Plat submitted.

The application **complies** with this review criterion.

12) The application meets any conditions or modifications of the approved preliminary plat. (UDC 2.1.3.d.2)

Through the review process and application of the Preliminary Plat, Staff recommends minor corrections as conditions to the plat. These corrections should be resolved prior to final plat approval.

The application **complies** with this review criterion, with conditions.

13) The application meets the purposes, intent, and applicable standards of Article 4. (UDC 2.1.3.d.3)

As a concurrent Preliminary and Final Plat application, this Final Plat review criterion is covered by the equivalent Preliminary Plat review criterion (subsection 3 above).

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, comments were received regarding the following issues:

1. Minor clerical corrections (partially corrected with revised submittal).
2. Design speed of Prairie Gold Lane
3. Lot size applicability to the Hospitality and Events Center zone of the PUD.

CONCLUSION:

Staff analysis is that the application meets the review criteria and therefore recommends approval of the expedited plat application as submitted by the applicant.

The area this plat is proposed in is anticipated to develop with a commercial hospitality center, based on both the existing zoning and the patterns proposed by the comprehensive plan. The proposed plat is consistent with these desired development patterns.

ALTERNATIVES:

1. Recommend approval of the expedited preliminary plat, forwarding the Final Plat to the Governing Body.
2. Recommend approval of the preliminary plat with conditions and that a final plat addressing the conditions of approval be prepared and presented to the Governing Body.
3. Recommend approval of the preliminary plat as submitted by the applicant and forward the preliminary plat to the Governing Body.
4. Recommend approval of the preliminary plat subject to staff's recommended conditions and forward the preliminary plat to the Governing Body.
5. Recommend denial of the preliminary plat based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
6. Postpone the project until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

The Planning Commission may modify staff's recommended conditions, delete conditions, add conditions, or decide contrary to staff's recommendation. In the event conditions are modified, the conditions shall relate to applicable review criteria. In the event that the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

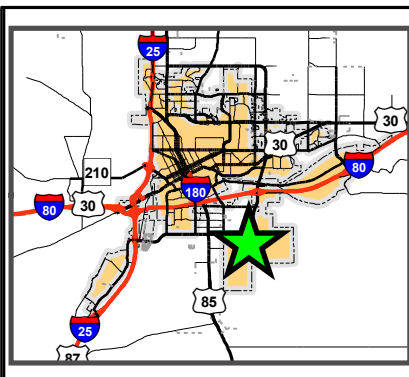
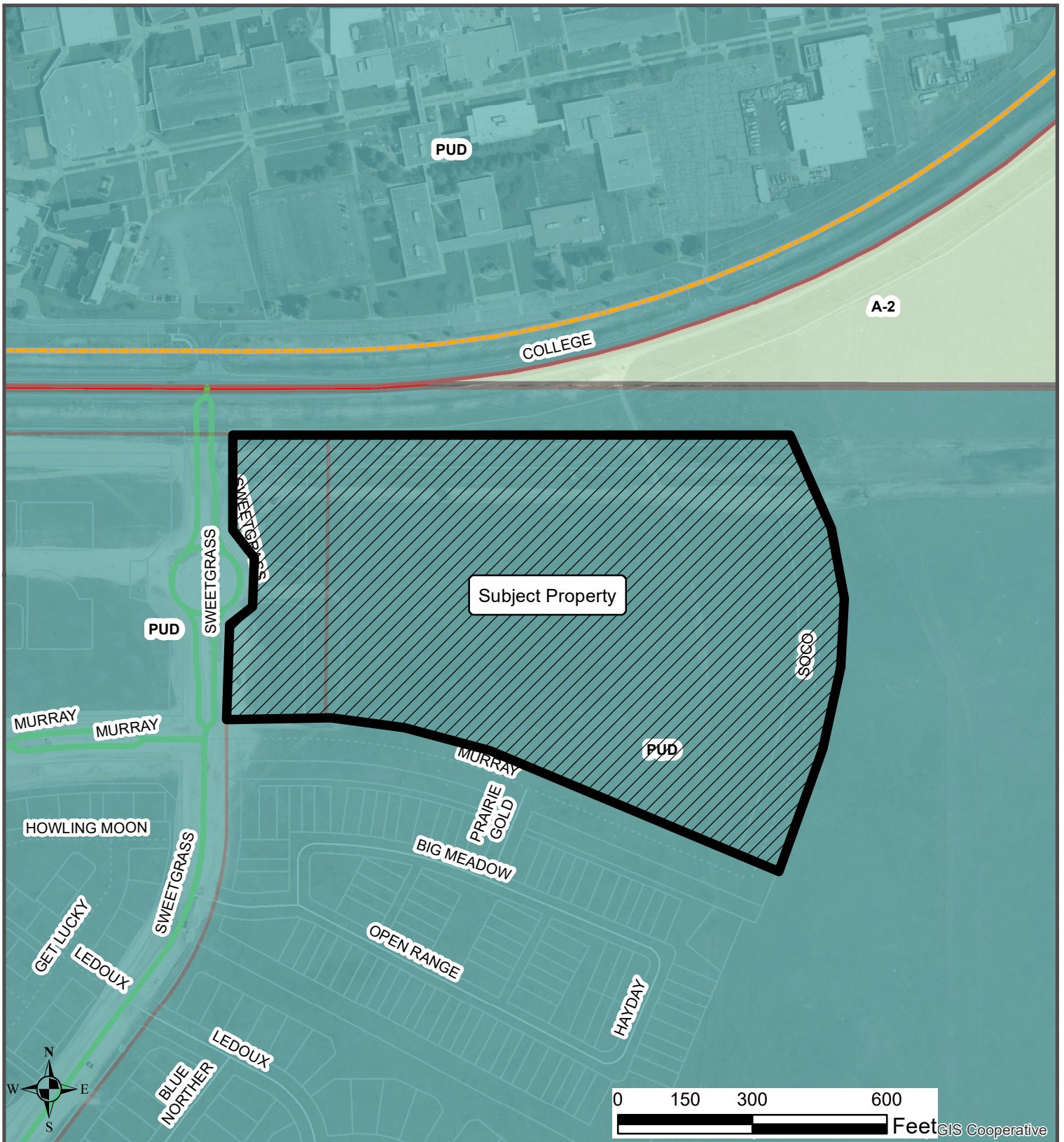
STAFF RECOMMENDATION:

Staff recommends approval of the expedited Preliminary Plat, advancing the Final Plat to the Governing Body with the following conditions:

1. Prior to Governing Body approval:
 - a. Modify the curves on the Prairie Gold Lane right-of-way so the centerline meets AASHTO standards for a minimum 30mph design speed.
 - b. Number the blocks, and renumber or rename the lots appropriately.

ATTACHMENTS:

1. Zoning Map
2. Land Use Plan Map
3. Master Application Form
4. Preliminary Plat
5. Final Plat

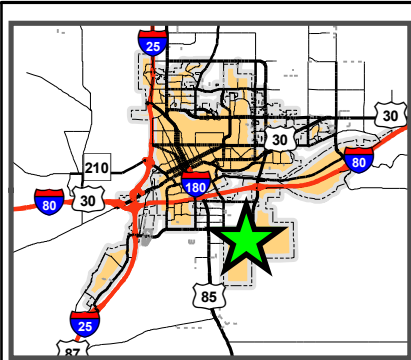
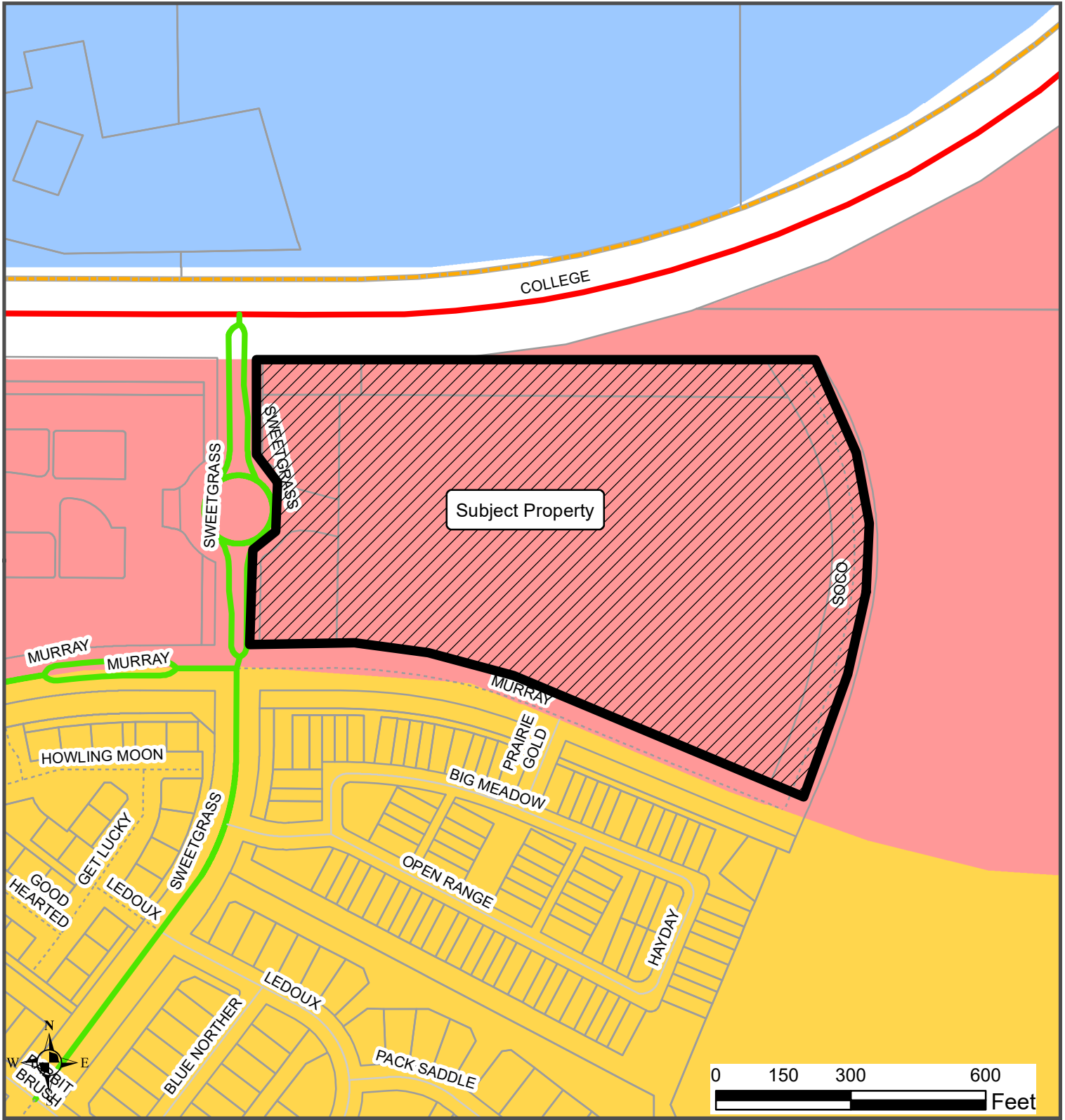


Attachment 1: Zoning Map PUDC-23-100

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

- | | |
|--|--|
| <ul style="list-style-type: none"> Nov19_CityLimits Interstate Principal Arterial Minor Arterial Major Collector Minor Collector Local Private Platted not built HR / High Density Residential MR / Medium Density Residential LR / Low Density Residential NR-2 / Neighborhood Residential - Med. Density NR-3 / Neighborhood Residential - High Density AR / Agricultural Residential | <ul style="list-style-type: none"> A-1 / Agricultural and Rural Residential A-2 / Agricultural AG / City Agricultural MUR / Mixed Use Residential Emphasis CBD / Central Business District CB / Community Business NB / Neighborhood Business MU / Mixed Use - County MUB / Mixed Use Business Emphasis MUE / Mixed Use Employment Emphasis HI / Heavy Industrial LI / Light Industrial P / Public AD / Airport District PUD / Planned Unit Development X / Exempt |
|--|--|



Attachment 2: Land Use Map PUDC-23-100

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

Nov19_CityLimits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		



Cheyenne, WY

08/29/2023

PUDC-23-100

Plat - Expedited

Status: Active**Date Created:** Jul 19, 2023

Applicant

Casey Palma
casey@plandesignwy.com
1775 Goodnight Trail
Suite 210
Cheyenne, WY 82007
3079968281

Primary Location

0 E MURRAY RD
Cheyenne, WY 82007

Owner:

SWEETGRASS LAND CO LLC
1825 CAMPSTOOL RD CHEYENNE, WY 82007

Additional Locations

0 SWEETGRASS DR, Cheyenne WY 82007

0 SWEETGRASS DR,
13661610100200Cheyenne WY 82007

Application Information

This application has a deadline. The deadline is typically the third Wednesday of the month (about 47 days prior to the anticipated Planning Commission Meeting). Application Schedule (<https://www.cheyennecity.org/files/sharedassets/public/departments/planningdevelopment/review-schedules/2023-schedule-1.pdf>).

An expedited review is when both a preliminary and final plat are submitted to the Planning Commission together. To be eligible for expedited review the preliminary plat shall contain no significant planning, design, and engineering issues. Upon determination by staff, the applicant may submit a preliminary and final plat to the Planning Commission.



I acknowledge the that Expedited status is not guaranteed.



Written Statement

Replat to adjust the east line of Blue FCU lot (L1, B8, Sweetgrass, 2nd Filing) to accommodate the proposed amended drive-thru site plan.

The updated Sweetgrass TIS reflects the proposed plat divisions and roadway | and the plat better conforms to the Sweetgrass Master Drainage Study & TNP than the current plat as it re-aligns (& re-names) the R/W formerly known as Loving Trail, to move the roadway out of the deepest part of the drainage and align with Prairie Gold Lane to the south.

Conceptual Civil Engineering is shown on the Pre-Plat (grading, roadways, & utilities)

Project Name

R+R Retail/Commercial Center (HEC)

Plat Title

R+R at Sweetgrass

Current Subdivision

Sweetgrass, 2nd Filing

Project area (acres)

22.37

Proposed Lots

10

Pre-application Meeting Date

--

Park Fees are due at time of signing of the final plat mylar (see UDC 4.2.5). I acknowledge that this plat may be required to pay plat-level Park Fees.



Public Improvements are required with platting actions. Please select the option that best demonstrates your intent for the public streets and other infrastructure adjacent to or within the plat boundary.

Owner(s) (or developers) behind the plat application will execute a sperate instrument for the needed infrastructure.

Review Criteria

The following review criteria are found in the UDC regarding a Preliminary Plat. Please acknowledge the proposed plat meets each review criterion by checking the box.

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan (2.1.2.d.1).



The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities (2.1.2.d.2).



The division of land meets the purposes, intent, and all applicable standards in Article 4 (2.1.2.d.3).



Any phasing proposed in the application is clearly indicated and demonstrates a logical and wellplanned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned (2.1.2.d.4).



The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts (2.1.2.d.5).



Lots proposed for development shall be buildable lots according to the existing or proposed zoning district standards, result in site design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district, and not aggravate nonconforming setbacks or currently adopted building and fire code access and separation requirements (2.1.2.d.6).



All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance (2.1.2.d.7).



The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property (2.1.2.d.8).



The application is not harmful to the public health, safety, and welfare (2.1.2.d.9).



Remainder lot(s) shall be clearly identified on the preliminary plat and shall not be developed or proposed for development for purposes. Remainder lot(s) shall be noted and described on all plats either graphically or by legal description (2.1.2.d.10).



The following review criteria are found in the UDC regarding a Final Plat. Please acknowledge the proposed plat meets each review criterion by checking the box.

The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan (2.1.3.d.1).



The application meets any conditions or modifications of the approved preliminary plat (2.1.3.d.2). (Not applicable at time of application for an expedited plat)

The application meets the purposes, intent, and applicable standards of Article 4 (2.1.3.d.3).



Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.

Casey L Palma, AICP for Palma Land Planning, LLC
07/17/2023

Staff Use

Attachments

-  SG-MasterLOA_UPDATED-0716233-SIGNED_071723.pdf
Uploaded by Casey Palma on Jul 19, 2023 at 9:30 am
-  SG-RNR_RevPrePlat_Comm-HEC_081623.pdf
Uploaded by Casey Palma on Aug 17, 2023 at 12:56 pm
-  SG-RNR_Comm-HEC_Rev081723.pdf
Uploaded by Casey Palma on Aug 17, 2023 at 12:56 pm
-  SWEETGRASS_AnnexAgmtLO_REC042318_Bk2583Pg1914.pdf
Uploaded by Casey Palma on Jul 19, 2023 at 10:48 am
-  Sweetgrass Phase 1 SWMP 1-7-2019 Final Storm-Drainage Signed.pdf
Uploaded by Casey Palma on Jul 19, 2023 at 9:30 am
-  Sweetgrass Long-Range Transportation Impact Study 2023.pdf
Uploaded by Casey Palma on Jul 19, 2023 at 9:32 am
-  SG Master Land Use_Notes071623_020423.pdf

Uploaded by Casey Palma on Jul 19, 2023 at 9:31 am



IMG_1435.jpeg

Uploaded by Casey Palma on Aug 15, 2023 at 4:33 pm

 PUDC-23-100 CommentLetter.pdf

Uploaded by Connor White on Aug 8, 2023 at 11:19 am

 BFCUsweetgrass-SitePlan-LOA_signed.pdf

Uploaded by Casey Palma on Jul 19, 2023 at 11:51 am

 PUDC-23-100_SG-RNR_ApplicantRESPONSE_081623.pdf

Uploaded by Casey Palma on Aug 16, 2023 at 10:35 pm

BOUNDARY CURVE TABLE					
CURVE #	DELTA	RADIUS	CHORD BEARING	CHORD LENGTH	ARC LENGTH
C1	57° 21' 08"	32.00'	N28° 23' 39"W	30.71'	32.03'
C2	27° 56' 38"	120.00'	N43° 05' 54"W	57.95'	58.53'
C3	49° 17' 15"	24.00'	N53° 46' 13"W	20.01'	20.65'
C4	46° 51' 24"	24.00'	N53° 07' 07"E	19.08'	19.63'
C5	27° 56' 38"	120.00'	N43° 36' 44"E	57.95'	58.53'
C6	57° 21' 08"	32.00'	N28° 57' 28"E	30.71'	32.03'
C7	21° 47' 14"	1247.45'	N79° 05' 16"W	471.50'	474.35'
C8	9° 51' 53"	1250.00'	S17° 33' 25"W	214.95'	215.21'
C9	43° 41' 17"	700.00'	S9° 13' 11"E	520.91'	533.75'

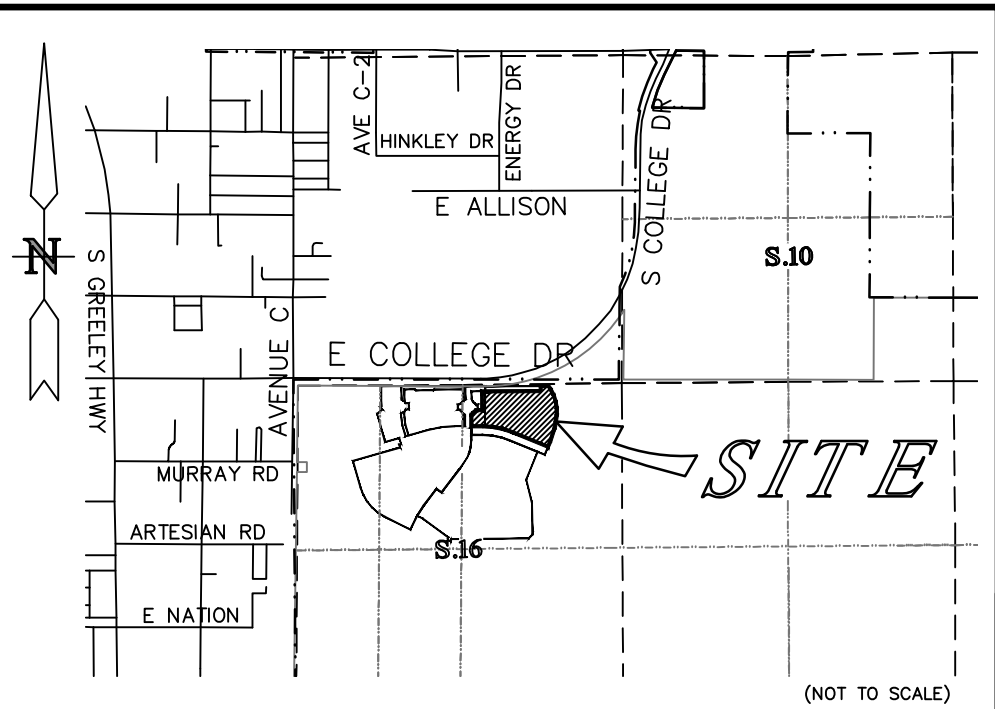
INTERNAL CURVE TABLE					
CURVE #	DELTA	RADIUS	CHORD BEARING	CHORD LENGTH	ARC LENGTH
C11	0° 23' 54"	1247.45'	N89° 46' 56"W	8.67'	8.67'
C11	23° 33' 46"	309.49'	N70° 18' 17"W	126.38'	127.27'
C12	13° 42' 15"	1247.45'	N82° 43' 52"W	6022.36'	298.37'
C13	7° 43' 46"	309.49'	N85° 57' 03"W	41.72'	41.75'
C14	13° 08' 06"	350.00'	S2° 25' 32"E	80.06'	80.24'
C15	47° 36' 22"	265.00'	S65° 53' 40"E	213.90'	220.18'
C16	20° 18' 38"	450.00'	S32° 38' 40"W	158.68'	159.52'
C17	7° 41' 05"	1247.45'	N72° 02' 12"W	6017.32'	167.32'
C18	19° 10' 56"	309.49'	N48° 55' 56"W	103.13'	103.61'
C19	3° 54' 18"	350.00'	S50° 32' 12"W	23.85'	23.85'
C20	44° 26' 33"	350.00'	N26° 21' 47"E	264.73'	271.48'
C21	48° 20' 07"	450.00'	S17° 08' 43"W	368.47'	379.62'
C22	11° 10' 35"	450.00'	N46° 54' 04"E	87.64'	87.78'
C23	30° 00' 00"	350.00'	N37° 29' 21"E	181.17'	183.26'

ROAD CENTERLINE CURVE TABLE					
CURVE #	DELTA	RADIUS	CHORD BEARING	CHORD LENGTH	ARC LENGTH
C24	47° 32' 21"	305.49'	S65° 54' 04"E	246.26'	253.47'
C25	30° 00' 00"	400.00'	S37° 29' 21"W	207.06'	209.44'
C26	72° 21' 10"	400.00'	S16° 18' 46"W	472.22'	505.12'

GENERAL NOTES

- BASIS OF BEARINGS - WYOMING STATE PLANE COORDINATES, EAST ZONE NAD83-2011. SITE COMBINATION FACTOR = 0.999665203. GRID DISTANCES.
NOTE: "SWEETGRASS" ANNEXATION (UDC-17-00543) INCLUDING THE SE $\frac{1}{4}$ OF SECTION 10 AND THE S $\frac{1}{4}$ OF SECTION 11, T.14N, R.66W, 6TH P.M. (ORD #4159 REC.BK.2523, Pg.1334) BASIS OF BEARINGS: CITY OF CHEYENNE CONTROL NETWORK REFERENCED FROM CITY CONTROL MONUMENTS "A.P.R." & "LUMMIS".
- ALL UNMONUMENTED LOT CORNERS, ANGLE POINTS, AND POINTS OF CURVATURE TO BE MONUMENTED WITH 1 $\frac{1}{2}$ " ALUMINUM CAP STAMPED "SSS P.L.S. 5910" ON $\frac{5}{8}$ "x24" REBAR.
- A PORTION OF THE LANDS CONTAINED WITHIN THE PLAT BOUNDARY AS SHOWN FALL WITHIN F.E.M.A. 100-YEAR SPECIAL FLOOD HAZARD AREA PER F.I.R.M. PANEL No.56021C13577, DATED JANUARY 17, 2007.
- DOMESTIC WATER AND SANITARY SEWER SERVICES TO BE PROVIDED BY CITY OF CHEYENNE BOARD OF PUBLIC UTILITIES (BOPU).
- OPEN SPACE
 - PRIVATE OPEN SPACE TRACT (TRACT T) IS, RESERVED FOR SWEETGRASS PUD PRIVATE OPEN SPACE AND/OR NON-MOTORIZED TRAILS, SAID TRACTS MAY BE ENCUMBERED BY UTILITY AND/OR DRAINAGE EASEMENTS CREATED BY SEPARATE INSTRUMENT AND/OR AS SHOWN HEREON. OWNERSHIP OF SAID TRACT T SHALL BE MAINTAINED BY CURRENT LANDOWNER: SWEETGRASS LAND CO., LLC, THEIR LEGAL SUCCESSORS AND/OR ASSIGNS (SEE NOTE TO ASSESSOR).
 - PRIVATE OPEN SPACE EASEMENT ACROSS LOT 8 HEREON IS RESERVED FOR RECREATION AND NON-MOTORIZED TRAILS, SAID EASEMENT MAY BE ENCUMBERED BY UTILITY AND/OR DRAINAGE EASEMENTS CREATED BY SEPARATE INSTRUMENT AND/OR AS SHOWN HEREON. THE OWNER OF SAID LOT 8, THEIR LEGAL SUCCESSORS AND/OR ASSIGNS SHALL MAINTAIN SAID EASEMENT EXCEPT AS OTHERWISE IDENTIFIED BY APPROPRIATE INSTRUMENT, PROPERLY EXECUTED AND RECORDED IN THE REAL ESTATE OFFICE OF THE LARAMIE COUNTY CLERK. (THIS MAY INCLUDE, BUT IS NOT LIMITED TO, COVENANTS, DEEDS, OR OTHER AGREEMENTS).
- ZONE DISTRICT: SWEETGRASS PLANNED UNIT DEVELOPMENT (PUD) [4th Amendment] AS APPROVED BY THE CITY COUNCIL OF CHEYENNE, WYOMING ON THE ____ DAY OF ____, 20__, (ORDINANCE #____).
LANDS CONTAINED WITHIN THE PLAT BOUNDARY ARE SUBJECT TO THE PROVISIONS OF THE "SWEETGRASS" PUD ANNEXATION MASTER ANNEXATION AGREEMENT (CITY CONTRACT #6784) RECORDED 4/23/2018 IN BOOK 2583, PAGE 1914 IN THE REAL ESTATE OFFICE OF THE CLERK OF LARAMIE COUNTY, WYOMING.
- "100' PUBLIC INGRESS/EGRESS & DRAINAGE EASEMENT" TO BE CONSIDERED AND REGARDED AS PUBLIC RIGHT-OF-WAY (R/W) UNDER AUTHORITY OF THE CITY OF CHEYENNE, GRANTED BY SEPARATE INSTRUMENT FOR DRAINAGE AND FOR PUBLIC ACCESS TO THE LANDS CONTAINED WITHIN THIS REPLAT. SAID EASEMENT ESTABLISHED FOR SAID PURPOSES UNTIL SUCH TIME THAT COLLEGE DRIVE IS RE-ALIGNED (ANTICIPATED TO COMMENCE IN 2025) AT WHICH TIME A SUITABLE ALTERNATIVE DEDICATED R/W CONNECTION TO COLLEGE DRIVE CAN BE ESTABLISHED.
- "40'x60' INGRESS/EGRESS, UTILITY, DRAINAGE, & ACCESS EASEMENT" GRANTED MUTUALLY BY AND BETWEEN THE OWNERS OF LOTS 2 AND 4, BLOCK 8, CREATED HEREBY, THEIR LEGAL SUCCESSORS AND/OR ASSIGNS FOR THE PURPOSES INDICATED. MAINTENANCE OF THE EASEMENT AREA SHALL BE EQUALLY BORNE BY SAID OWNERS.
- ALL UTILITIES TO BE PROVIDED IN PUBLIC RIGHT(S)-OF-WAY OR EASEMENTS AS SHOWN AND DESCRIBED HEREON.
- "BHE EASEMENTS" SHOWN HEREON GRANTED TO CHEYENNE LIGHT, FUEL & POWER, THEIR LEGAL SUCCESSORS AND/OR ASSIGNS FOR THE PROVISION OF LOCAL SERVICE UTILITIES LINES ONLY. TYPICAL "B" AT COMMERCIAL STREET FRONTS AND "C" AT RESIDENTIAL FRONTS.

VICINITY MAP



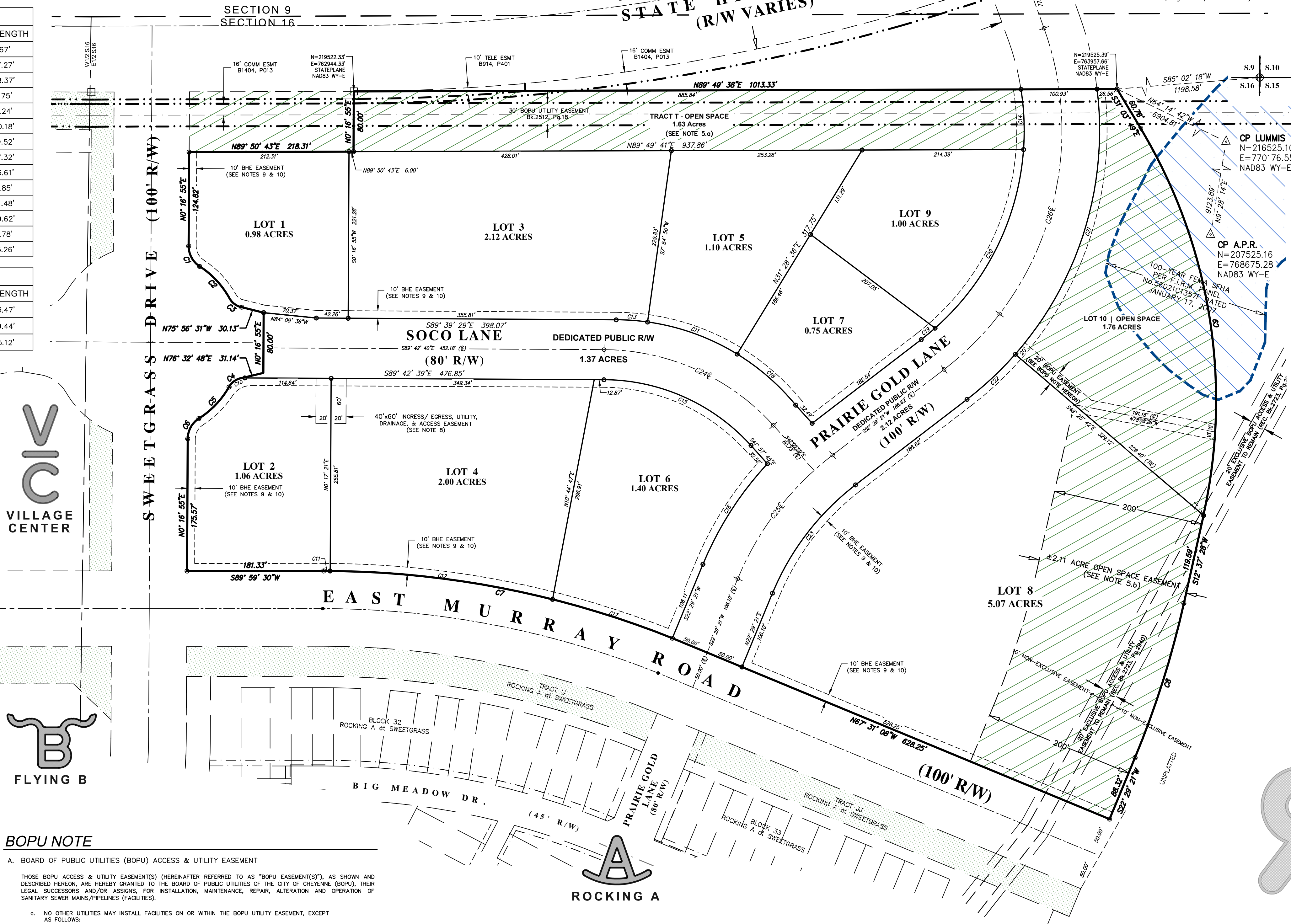
NOTE TO ASSESSOR

BY THEIR SIGNATURES AFFIXED HEREON, ALL STAKEHOLDERS OF THIS SUBDIVISION PLAT AS SHOWN HEREON CONSENT TO THE FOLLOWING BY THEIR FREE ACT AND DEED AND IN ACCORDANCE WITH THEIR DESIRES:

OPEN SPACE TRACT T IS RESERVED FOR SWEETGRASS PUD PRIVATE OPEN SPACE AND/OR NON-MOTORIZED TRAILS, SAID TRACT MAY BE ENCUMBERED BY UTILITY AND/OR DRAINAGE EASEMENTS CREATED BY SEPARATE INSTRUMENT AND/OR AS SHOWN HEREON. SAID TRACT T SHALL BE MAINTAINED BY THE SWEETGRASS MASTER HOA, THEIR LEGAL SUCCESSORS AND/OR ASSIGNS (WHICH MAY INCLUDE, BUT IS NOT LIMITED TO, OTHER ESTABLISHED OWNERS ASSOCIATION(S), AS IDENTIFIED BY APPROPRIATE INSTRUMENT, PROPERLY EXECUTED AND RECORDED IN THE REAL ESTATE OFFICE OF THE LARAMIE COUNTY CLERK.

OWNERSHIP SHALL BE ESTABLISHED AS UNDIVIDED PROPORTIONAL INTEREST (BY RATIO OF OWNERSHIP AREA/TOTAL COMMERCIAL AREA) OF ALL OWNER(S) OF LOTS 2, 3, 4, 5, 6, 7, & 9, BLOCK 8, R+R AT SWEETGRASS (THIS PLAT). ANY CONVEYANCE OF ANY OF SAID LOTS SHALL INCLUDE "AN UNDIVIDED PROPORTIONAL INTEREST IN OPEN SPACE TRACT T, R+R AT SWEETGRASS"

AUTHORITY OF PRIVATE OPEN SPACE: OPEN SPACE TRACT T IS OWNED AS DESCRIBED ABOVE, HOWEVER: AUTHORITY OF SAID LANDS AND PLATTED BOUNDARIES (OR ADJUSTMENTS THERE TO) MAY BE ASSIGNED, IN WHOLE OR IN PART, TO A MANAGING ENTITY OR OTHER ESTABLISHED OWNERS ASSOCIATION, AS IDENTIFIED BY APPROPRIATE INSTRUMENT, PROPERLY EXECUTED AND RECORDED IN THE REAL ESTATE OFFICE OF THE LARAMIE COUNTY CLERK. (THIS MAY INCLUDE, BUT IS NOT LIMITED TO, COVENANTS, DEEDS, OR OTHER AGREEMENTS).



BOPU NOTE

- BOARD OF PUBLIC UTILITIES (BOPU) ACCESS & UTILITY EASEMENT
THOSE BOPU ACCESS & UTILITY EASEMENT(S) (HEREINAFTER REFERRED TO AS "BOPU EASEMENT(S)"), AS SHOWN AND DESCRIBED HEREON, ARE HEREBY GRANTED TO THE BOARD OF PUBLIC UTILITIES OF THE CITY OF CHEYENNE (BOPU), THEIR LEGAL SUCCESSORS AND/OR ASSIGNS, FOR INSTALLATION, MAINTENANCE, REPAIR, ALTERATION AND OPERATION OF SANITARY SEWER MAINS/PIPELINES (FACILITIES).
 - NO OTHER UTILITIES MAY INSTALL FACILITIES ON OR WITHIN THE BOPU UTILITY EASEMENT, EXCEPT AS FOLLOWS:
OTHER UTILITIES MAY CROSS THE BOPU UTILITY EASEMENT, IF AND ONLY IF:
 - A UTILITY'S FACILITIES CROSS THE BOPU FACILITIES AT NO LESS THAN A 60 DEGREE ANGLE;
 - A MINIMUM OF 24 INCHES OF VERTICAL CLEARANCE IS PROVIDED BETWEEN THE BOPU FACILITIES AND THE CROSSING FACILITIES, UNLESS OTHERWISE APPROVED BY THE BOPU; AND
 - COPY OF ANY UTILITY EASEMENT AUTHORIZING THE CROSSING OF THE BOPU UTILITY EASEMENT IS PROVIDED TO THE BOPU PRIOR TO ANY CONSTRUCTION WITHIN THE BOPU UTILITY EASEMENT.
 - IF GRANTOR REQUIRES RELOCATION OF THE FACILITIES, GRANTOR AGREES TO RELOCATE THE FACILITIES PROVIDED THAT GRANTOR PAYS FOR THE RELOCATION OF THE FACILITIES, PROVIDES A SUITABLE ALTERNATE LOCATION FOR SUCH FACILITIES AND GRANTS THE NECESSARY EASEMENT RIGHTS AT THE NEW LOCATION UPON THE SAME TERMS AND CONDITIONS PROVIDED WITH THE ORIGINAL EASEMENT.
 - IF GRANTEE (BOPU/CITY OF CHEYENNE) REQUIRES RELOCATION OF THE FACILITIES, GRANTEE SHALL PAY FOR REMOVAL AND RELOCATION OF THE FACILITIES.
 - IF GRANTEE ACCESSES THE FACILITIES OR UNDERTAKES WORK OR MAINTENANCE ON THE FACILITIES, GRANTEE SHALL REPAIR ANY DAMAGE TO GRANTOR'S PROPERTY RESULTING THEREFROM, INCLUDING RESTORATION OF ANY AREAS DISTURBED AS A RESULT OF SUCH ACCESS AND/OR WORK.

FILING RECORD

APPROVALS

Approved by the City of Cheyenne Planning Commission this ____ day of _____, 2023.

Planning & Development Director, City of Cheyenne, Wyoming

Approved by the Council of the City of Cheyenne, Wyoming this ____ day of _____, 2023.

Mayor

ATTEST: _____
City Clerk

CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Steil Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

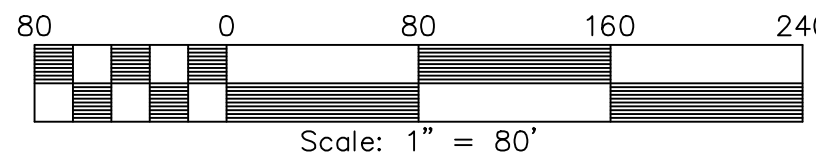
REVISED: 12/20/2021

\\20001 SWEETGRASS\004 R+R CommRetail (SG2)\CAD\SG-R+R-2022_SG2-REPLAT(1).dwg

© COPYRIGHT 2023 STEIL SURVEYING SERVICES, LLC ALL RIGHTS RESERVED

LEGEND

- SET 1 $\frac{1}{2}$ " ALUMINUM CAP STAMPED "SSS P.L.S. 5910" ON $\frac{5}{8}$ "x24" REBAR
- FOUND 1 $\frac{1}{2}$ " ALUMINUM CAP STAMPED "SSS P.L.S. 2500"
- ▲ FOUND PLASTIC CAP STAMPED "SSS P.L.S. 5910"
- FOUND W.D.O.T. R/W MONUMENT
- FOUND GLO STONE
- △ CITY OF CHEYENNE CONTROL MONUMENT
- ▨ EXISTING PUBLIC OPEN SPACE / GREENWAY
- ▤ PRIVATE TRAILS/OPEN SPACE EASEMENT(S) (SEE NOTE 5)



DEDICATION

KNOW ALL PERSONS BY THESE PRESENTS THAT: BLUE FEDERAL CREDIT UNION, owner in fee simple of Lot 1, Block 8, Sweetgrass, 2nd Filing, AND SWEETGRASS LAND CO., LLC, owner in fee simple of Lots 2 & 3, Block 8, Sweetgrass, 2nd Filing; situated in the NE $\frac{1}{4}$ of Section 16, Township 14 North, Range 66 West of the 6th P.M., City of Cheyenne, Laramie County, Wyoming.

Have caused said lands, along with that portion of adjacent Sweetgrass Drive and Loving Trail Public Rights-of-Way, as shown and described hereon, to be surveyed, vacated and re-platted to be known as R+R AT SWEETGRASS, and do hereby declare the subdivision of said land as it appears on this plat, to be their free act and deed and in accordance with their desires and dedicate to the public the rights-of-way as shown hereon; and do furthermore grant the easements as shown and described for the purposes indicated.

as _____
PRINT NAME PRINT TITLE for Blue Federal Credit Union

Annaliese Weiderspahn as Member for Sweetgrass Land Co., LLC

ACKNOWLEDGEMENT

STATE OF WYOMING)
COUNTY OF LARAMIE) SS

The foregoing instrument was acknowledged before me this ____ day of _____, 2023, by Annaliese Weiderspahn as Member for Sweetgrass Land Co., LLC, a Wyoming Corporation.

Notary Public, Laramie County, Wyoming

My Commission Expires: _____

STATE OF WYOMING)
COUNTY OF LARAMIE) SS

The foregoing instrument was acknowledged before me this ____ day of _____, 2023, by _____

as _____
PRINT NAME PRINT TITLE for Blue Federal Credit Union

Notary Public, Laramie County, Wyoming

My Commission Expires: _____

R and R

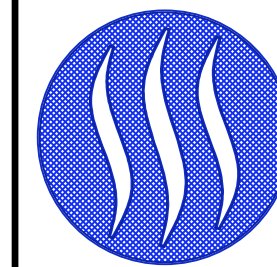
Sweetgrass

CHEYENNE WYOMING

A REPLAT OF
ALL OF LOTS 1, 2, & 3, and "TRACT T",
BLOCK 8, SWEETGRASS, 2nd FILING
AND
A PORTION OF ADJACENT RIGHTS-OF-WAY

SITUATED IN THE NE $\frac{1}{4}$ OF SECTION 16
TOWNSHIP 13 NORTH, RANGE 66 WEST, 6TH P.M.
CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

PREPARED May 2023



STEIL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
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